IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-III

ITEM No. 304
CP.CAA-44(ND)/2023

IN THE MATTER OF:
Rubicon Mercantile Pvt Ltd. AND Meghmala Marketing Pvt Ltd. …. Petitioner/Applicant

Order under Section 230-232 of the Companies Act, 2013.

Order delivered on 20.11.2023

CORAM:
SHRI BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For Petitioner : PCS Raghav Agarwal, Mr. Saral Sharma Advs.
For the OL : Ms. Hemlata Rawat, Mr. Aayushmaan Vatsyayana Advs.
For the RD : Ms. Niharika Tanwar Adv.

ORDER

We have heard the submissions made by the Ld. Counsel appearing for the Applicant.

The RD and OL have filed reports. There are certain observations in the report filed by the RD to which the Applicant has already filed e-response.

None appears for the Income Tax Department and no report has been filed despite several opportunities being granted. One week further time granted as a last and final opportunity for filing its report, failing which, the matter will be considered on merits without the report of Income Tax Department on the next date of hearing. In the meantime, the Applicant shall serve a copy of response to the RD's report, on the Ld. Counsel appearing for the RD within two days.

Ld. Counsel appearing for the OL has submitted that there are no objections in the report filed by the OL.

List the matter **on 15.01.2024.**

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

ANAND DUBEY